

OFFER To PURCHASE

ADDRESS:

AGENT NAME:

TABLE OF CONTENTS

1. SCHEDULE 1
2. SCHEDULE 2
3. DEFINITIONS
4. INTERPRETATIONS
5. SALES
6. ACCEPTANCE
7. PURCHASE PRICE
8. THE PROPERTY
9. RISK
10. TRANSFER
11. OCCUPATION
12. SUSPENSIVE CONDITIONS
13. WARRANTIES
14. NOMINATION AND CAPACITY OF PARTIES
15. COMMISSION
16. CERTIFICATES
17. RATES, TAXES AND CONSUMPTION CHARGES
18. BREACH
19. COOLING OFF
20. DOMICILIARY (PLACE FOR SERVICES OF SUMMONS AND NOTICES)
21. CONSENT TO JURISDICTION
22. MARITAL STATUS OF PURCHASER
23. SPECIAL CONDITIONS
24. COSTS
25. SALE BOARD
26. WHOLE AGREEMENT
27. NON VARIATION
28. NON WAIVER
29. SEVERABILITY
30. APPLICABLE LAW



Best of
Ekurhuleni
READERS' CHOICE AWARDS 2023

1. Schedule 1

1.1 Purchaser's Details

Purchaser 1

Name and Surname:	
ID Number:	
Current Address:	
Income Tax Number:	
VAT Number (If Applicable)	

Purchaser 2

Name and Surname:	
ID Number:	
Current Address:	
Income Tax Number:	
VAT Number (If Applicable)	

Marital Status (Tick underneath Applicable option)

Married by Antenuptial Contract (Out of Community of Property)	Married in Community of Property	Married in Accordance of Customary Law	Married in Accordance of Islamic Rights	Unmarried	Married governed by Foreign Law

1.2 The Property

Physical Address:	
Erf Number:	
Township:	

1.3 Homeowners Association (if Applicable)

Full Name:	
------------	--

1.4 Offer

Purchase Price:	R		
* Amount in words:			
Deposit due in 7 days:			
Cash Contribution:		Fulfilment Date:	
Cash from Proceeds of Sale:			

1.4 (Offer continued)

1.4.1 Suspensive Conditions

1.4.1.1 Bond Finance (As contemplated in clause 12.1.1)	R
1.4.2 Property Sale (As contemplated in clause 12.1.2)	R
1.4.2.1 Minimum Purchase Price	R

1.5 Details of Property to be Sold (if Applicable)

Physical Address:	
Erf Number:	
Register Owner:	
Bond Details :	

1.6 Other Suspensive Conditions:

Condition:	1.6.1 Fulfilment Date:

1.7 Irrevocable Offer Date:		
1.8 Occupation of Property will be granted 48 hours after registration:	YES	NO
1.9 Occupational Rental From:	Date:	Amount:
1.10 Guarantee Delivery Period (Date on which the guarantees will be delivered)		

1.11 The Fixtures and Fitting (*DELETE WHICHEVER IS NOT APPLICABLE)

All Fixtures and Fittings of a permanent nature including, but not necessarily limited to:-		
All existing electric light fittings	Television Aerial's, if any	Satellite Dishes, if any
All pool cleaning equipment, if any	Stoves	Built in Heaters and Aircon
Pellets and Curtain Fittings	Blinds	Door Keys
Fitted Carpets	Pumps, if any	Generator
Fences	Pool Equipment and Safety Nets	Alarm Systems
Gas Bottles (specify)	Cameras	Inverter system
Pot Plants and water features, if any	Exterior Beams	Solar Panels

1.11.1 Schedule 1 (Continued)

And Including:

1.11.2 But Excluding:

1.12 Special Conditions (if Any)

1.13 The Agent

		Fidelity Fund Number
Agency:	Kingstons Real Estate	202614013910000
Individual Representative (Intern: No)	Alyssa Macdonald	202577711630000
Principle Agent:	David Helena	202523021540000

Agency's Details:

Physical Address:	Corner 14th Avenue and Dalrymple Street, Northmead, Benoni, 1501
Postal:	PO Box 6224, Dunswart, 1508
VAT Number:	4350267052
Telephone Number:	010 020 2431
Email Address:	

1.14 The Seller

Seller 1

Name and Surname:	
ID Number:	
Current Address:	
Postal Address:	
VAT Number (if Applicable)	

Seller 2

Name and Surname:	
ID Number:	
Current Address:	
Postal Address:	
VAT Number (if Applicable)	

Sellers Bond Details

Bond Institution:	
Bond Account number:	
Outstanding bond amount + - :	
Rates & Taxes and bond up to date: YES/NO	
Rates & Taxes account number:	

1.15 Conveyancing Attorneys

Firm:	
Attorney:	
Physical Address:	
Telephone Number:	
Email Address:	

Schedule 2

2.1 Purchaser's Acknowledgement

The Purchaser(s) acknowledges that they are aware of the transfer and bond costs that are associated with this property purchase.	INITIAL(S)
---	------------

2.2 Bond Requirements

2.2.1 Employment Details of Purchasers

	APPLICANT 1		APPLICANT 2	
Employment Type:	Full-time	Self-Employed	Full-time	Self-Employed
Employer/Company Name:				
Period of Employment/ Company Duration:				
Occupation:				
Gross Monthly Income:				
Spouses Gross Monthly Income:				
Banking Institution:				

2.2.2 Bond Documents Required (Please select applicable Income Structure)

Regular Salary		Salary + Allowance/ Commission/Overtime		Self-Employed	
• Colour copy ID • 3 Months Payslips • 3 Months Stamped Bank Statement • If employment period is less than 3 months, employment contract will be required		• Colour copy ID • 6 Months Payslips • 6 Months Stamped Bank Statement • If employment period is less than 3 months, employment contract will be required		• Colour copy ID's of all • Directors/Members/Trustees Company statutory documents (CK documents) • Letter from accountant/auditor confirming personal income • ITA34 from SARS • 2 years audited business financials, if financials are older than 6 months, then signed up-to-date management accounts are required as well • 6 months personal and business stamped bank statements • Cash flow forecast for ensuing 12 months	

2.2.3 Bond Origination:

The Purchaser(s) acknowledges that they will provide all applicable bond documents to the bond originator within 5 working days of offer acceptance.	INITIAL(S)
--	------------

3. Definitions:

- 3.1 In this Agreement, the following words shall have the following meanings, unless the contrary appears from the context:
- 3.1.1 “**Agent**” means the agent referred to in Item 1.13 of Schedule “1”;
- 3.1.2 “**Agent’s Commission**” means the commission payable to the Agent as set out and contemplated in clause 15 of the Agreement.
- 3.1.3 “**Agreement**” means this Offer to Purchase which constitutes a Deed of Sale when duly accepted by the Purchaser together with all schedules and addenda attached hereto as if specifically incorporated herein.
- 3.1.4 “**Consumption Charges**” means the charges payable for all utilities (including electricity, water, sewage and refuse if not included on the municipal rates and taxes account) supplied to the Property, including, but not limited to charges in respect of consumption or estimated consumption;
- 3.1.5 “**Conveyancing Attorneys**” means the attorneys referred to in item 1.15 of Schedule “1”, or failing them, such other attorneys as may be nominated or agreed to by the Seller;
- 3.1.6 “**CPA**” means the Consumer Protection Act 68 of 2008, as amended, as read with any regulations published in terms thereof from time to time;
- 3.1.7 “**Deposit**” means the deposit referred to in item 1.4 of Schedule “1”;
- 3.1.8 “**FICA**” means the Financial Intelligence Centre Act 38 of 2001, as amended;
- 3.1.9 “**Fixtures**” means all the fixtures referred to in item 1.11 of Schedule “1” including all fixtures and fittings of a permanent nature but excluding those items referred to in item 1.11.2 of Schedule “1” as being specifically excluded;
- 3.1.10 “**Guarantee Delivery Period**” means the period by which the original bank or other original guarantees approved of by the conveyancers are to be delivered to the conveyancers as set out in item 1.10 of Schedule “1” calculated with effect from the date of acceptance hereof by the Seller as contemplated in clause 7.1.2.1;
- 3.1.11 “**Home Owners Association**” means the Home Owners Association referred to in item 1.3 of Schedule “1” (if applicable);
- 3.1.12 “**Occupation Date**” means the date referred to in item 1.8 of Schedule “1” being the date upon which the Purchaser is to take occupation of the Property;
- 3.1.13 “**Occupational Rental**” means the amount of occupational rental referred to in item 1.9 of Schedule “1” payable per month calculated in accordance with clause 11;
- 3.1.14 “**Purchase Price**” means the purchase price referred to in item 1.4 of Schedule “1” exclusive of VAT to be discharged in accordance with clause 7;
- 3.1.15 “**Property**” means the immovable property referred to in item 1.2 of Schedule “1” being the subject matter of the purchase and sale contemplated in this agreement inclusive of all Fixtures and fittings as contemplated in clause 8;
- 3.1.16 “**Purchaser**” means the party or parties referred to in item 1.1 of Schedule “1”;
- 3.1.17 “**Seller**” means the party or parties referred to in item 1.14 of Schedule “1”;
- 3.1.18 “**Special Conditions**” means the conditions contemplated in item 1.12 of Schedule “1” as read with clause 23;
- 3.1.19 “**Suspensive Conditions**” means the suspensive conditions contemplated in item 1.4.1 of Schedule “1” as read with clause 12;
- 3.1.20 “**VAT**” means Value Added Tax in terms of the VAT Act; and
- 3.1.21 “**VAT Act**” means the Value Added Tax Act, No 89 of 1991, as amended.

4. Interpretation

- 4.1 In this offer to purchase, unless the contrary appears from the context:
 - 4.1.1 words importing natural persons shall include a reference to legal persons and vice versa;
 - 4.1.2 words importing the masculine gender shall include a reference to the feminine gender and vice versa;
 - 4.1.3 words importing the singular shall include a reference to the plural and vice versa;
 - 4.1.4 attachments to the offer to purchase shall be deemed to have been incorporated into the offer to purchase and shall form an integral part thereof;
 - 4.1.5 a reference to a party in the offer to purchase shall include that party's successors and lawful assigns;
 - 4.1.6 any reference to an enactment is to the enactment as at the date of signature of this offer to purchase and as amended or re-enacted from time to time;
 - 4.1.7 where the day on or by which anything is to be done is not a business day, it shall be done on or by the first business day thereafter;
 - 4.1.8 when any number of days is prescribed in the offer to purchase, same shall be reckoned exclusively of the first and inclusively of the last day, unless the last day falls on a Saturday, Sunday or public holiday, in which case the last day shall be the next succeeding day which is not a Saturday, Sunday or public holiday;
 - 4.1.9 the captions and headings in the offer to purchase are for reference purposes only and shall not affect the interpretation thereof;
 - 4.1.10 if any definition is a substantive provision conferring rights or imposing obligations on any party, then notwithstanding that it is only a definition, effect shall be given to it as if it were a substantive provision in the body of the offer to purchase;
 - 4.1.11 words or expressions defined in this offer to purchase shall bear the same meanings in the attachments to this offer to purchase;
 - 4.1.12 where figures are referred to in numerals and in words, the words shall prevail if there is a conflict between the two; and
 - 4.1.13 the rule of construction that a contract shall be interpreted against the party responsible for drafting it, shall not apply to this offer to purchase.

5. SALE

The Seller hereby sells to the Purchaser who hereby purchases the Property from the Seller on the terms and conditions set out in this agreement.

6. ACCEPTANCE

- 6.1 This offer to purchase shall become a final and binding sale agreement upon acceptance hereof by the Seller in writing in accordance with the provisions of this agreement.
- 6.2 If the offer contains an irrevocable offer date as set out in item 1.7 of Schedule "1", the offer shall be irrevocable until midnight on such date and shall thereafter automatically lapse and shall be of no further force or effect. If however no irrevocable date is specified in Schedule "1", then in such event, this offer may be withdrawn by the Purchaser by delivering such notice in writing to the Sellers physical, telefax or e-mail address (not postal) at any time prior to acceptance hereof by the Seller which notice shall be effective from the time of delivery or successful transmission thereof.

7. PURCHASE PRICE

- 7.1 The Purchase Price is payable as follows:-
 - 7.1.1 the Deposit to be Deposited in trust with the Conveyancing Attorneys within 7 (seven) days of the date of acceptance hereof by the Seller. The Deposit is to be retained in a special interest bearing account for the benefit of the Purchaser until registration of transfer of the Property into the name of the Purchaser, such interest to accrue to the Purchaser;
 - 7.1.2 The balance of the Purchase Price (less the Deposit contemplated above) to be paid on registration of transfer of the Property into the name of the Purchaser and to be secured by either of the following:-
 - 7.1.2.1 an acceptable bank (or other acceptable financial institution) guarantee(s) in favour of the seller on terms and conditions reasonably acceptable to the Seller, to be delivered to the Conveyancing Attorneys by no later than the Guarantee Delivery Period calculated with effect from the date of acceptance of this offer by the Seller or the date of fulfilment of all the Suspensive Conditions (if any) whichever date occurs last; or

- 7.1.2.2 to be paid in cash to the Conveyancing Attorneys on or before the expiry of the Guarantee Delivery Period, or the date of fulfilment of all Suspensive Conditions (if any) whichever date occurs last. In this event, interest shall accrue thereon as contemplated in clause 7.1.1.
- 7.2 In the event that VAT is payable on the sale of the Property (as opposed to transfer duty), then it is recorded that the Purchase Price is exclusive of VAT and that such VAT is payable by the Purchaser on demand

8. THE PROPERTY

The Property is sold inclusive of all the Fixtures and fittings of a permanent nature including, but not limited to those Fixtures identified in item 1.11 of Schedule "1", but excluding any items identified in item 1.11.2 of Schedule "1" as being specifically excluded. The Seller warrants that all the Fixtures and fittings (save for any excluded items) will be fully paid for as at the date of transfer.

9. RISK

The risk of ownership in and to the Property shall pass to the Purchaser with effect from the Occupation Date, alternatively the date upon which the Property is transferred into the Purchaser's name in the relevant deeds office by the Conveyancing Attorneys, whichever date occurs first, from which date the Purchaser shall receive all benefits from and be responsible for all rates, taxes and other charges levied upon the Property, plus VAT thereon if applicable.

10. TRANSFER

- 10.1 Transfer of the Property shall be effected by the Conveyancing Attorneys and all cost of transfer including conveyancing fees, transfer duty, stamp duty, estimated rates and taxes and/or levies, loan application costs, mortgage bond costs and all other costs incidental thereto shall be paid for by the Purchaser on demand.
- 10.2 The Seller and the Purchaser undertake, immediately upon being requested to do so by the Conveyancing Attorneys, to sign all such documents that are required to be signed in connection with the transfer of the Property into the name of the Purchaser.

11. OCCUPATION

- 11.1 Occupation of the Property shall be given to the Purchaser on the Occupation Date subject to compliance and/or fulfilment of the following conditions:-
- 11.1.1 payment of the Deposit in accordance with 7.1.1;
- 11.1.2 furnishing of the guarantees or cash contemplated in clause 7.1.2, within the period contemplated therein, if applicable;
- 11.1.3 payment of the first months Occupational Rental to the Conveyancers;
- 11.1.4 signature of the transfer and/or bond documents and payment of the transfer and bond costs, if already called for by the Conveyancing Attorneys;
- 11.1.5 the Purchaser is not in breach of any of its obligations in terms of this agreement.
- 11.2 In the event that the Occupation Date does not coincide with the date of registration of transfer, the party enjoying occupation of the Property shall pay the Occupational Rental to the Conveyancers for the benefit of the registered owner of the Property per month, payable monthly in advance, together with the cost of water and electricity Consumption Charges. Occupational Rental shall be adjusted on a pro-rata basis for any incomplete month relative to the date of transfer of the Property into the Purchaser's name.
- 11.3 Should the monthly Occupational Rental not have been specified in item 1.9 of Schedule "1", same shall be calculated at 1% (one percent) of the Purchase Price per month.
- 11.4 If occupation of the Property is given to the Purchaser prior to registration of transfer, the Purchaser shall not be entitled to make any alterations or additions to the Property before the date of registration of transfer. The Purchaser shall be obliged, in the event of a termination or lapse of the Agreement, to immediately vacate the Property and to restore it to the Seller in the same condition as and when the Purchaser took occupation.
- 11.5 The Purchaser acknowledges that no tenancy shall be created by the Purchaser taking occupation prior to the registration of transfer and that the Purchaser will have no claims whatsoever against the Seller arising out of any alterations and/or additions made to the Property by the Purchaser.

12. SUSPENSIVE CONDITIONS

- 12.1 This Agreement may be subject to one or more of the following Suspensive Conditions, as contemplated in item 1.4 of Schedule "1", namely:-
- 12.1.1 that the Purchaser or the Agent (on the Purchaser's behalf) is able to procure, within a period of 21 (twenty one) working days with effect from the date of acceptance hereof by the Seller, the grant to the Purchaser of a loan from a banking or other financial institution in an amount not less than the amount recorded in item 1.4.1.1

of Schedule "1", upon the security of a first mortgage bond to be registered over the Property at such rate of interest and on such conditions as may be stipulated by the bank or other financial institution to which the application for the loan is made. The Seller or the Agent is hereby authorised to unilaterally extend the 21 (twenty one) working day period contemplated herein, at their discretion, for a further period subject to a maximum period of 60 (sixty) working days and if necessary, the Seller or the Agent is hereby authorised to apply for the required loan on behalf of the Purchaser. The Purchaser warrants that it is aware and understands the customary requirements of banking and/or financial institutions regarding the eligibility for loan finance based on income, credit ratings and other qualifications, and hereby warrants to the best of the Purchaser's knowledge and belief that the Purchaser is eligible for a loan in an amount and on terms and conditions contemplated in this Agreement. This condition shall be deemed to have been fulfilled upon advice given by the bank or financial institution (mortgagee) that the loan has been approved in principle. If the loan is not approved through no fault of the Purchaser within the aforesaid 21 (twenty one) working day period (or any extended period as may be applicable), the sale contemplated herein shall automatically lapse and shall be of no further force or effect and the Deposit paid by the Purchaser shall be refunded to it together with any interest accrued thereon. The parties agree that this clause has been inserted for the benefit of the Purchaser who may waive the terms hereof prior to the expiry of the relevant period, in which event the Agreement shall no longer be subject to any such condition.

- 12.1.2 that, within a period of 60 (sixty) working days of the acceptance hereof by the Seller, the Purchaser receives an offer to purchase the Purchaser's Property contemplated in item 1.4.2 of Schedule "1" (hereinafter referred to as the "the Purchaser's Property") for a Purchase Price of not less than that reflected in item 1.4.2.1 of Schedule "1".
- 12.1.2.1 The Purchaser undertakes to immediately commence marketing the second Property and to take all reasonable steps and to do all things reasonably necessary to procure the receipt of an offer to purchase the Purchaser's Property as contemplated herein. Upon fulfilment of this condition, the transfer of both the Property and the Purchaser's Property shall, insofar as may be necessary, be linked in the conveyancing and financing process and the Purchaser hereby irrevocably instructs its transferring attorneys to collaborate with the Conveyancing Attorneys and to furnish such guarantees and/or payments and/or undertakings as may be reasonably required by the Conveyancing Attorneys
- 12.1.2.2 The parties agree that this clause has been inserted for the benefit of the Purchaser who may waive the terms thereof in which event the Agreement will no longer be subject to any such condition
- 12.2 Any other suspensive condition that may be detailed under item 1.6 of Schedule "1" must be fulfilled or waived by the Purchaser by the fulfilment date(s) set out in item 1.6.1 of Schedule "1" failing which this Agreement shall lapse and be of no further force or effect. The parties agree that this clause has been inserted for the benefit of the Purchaser who may waive the terms hereof in which event the Agreement shall no longer be subject to any such condition.

13. WARRANTIES

- 13.1 Save for the warranty set out in clause 13.4 below, the Seller gives no warranty in regard to the Property or to the buildings and any improvements upon the Property or to the rights attaching thereto or to any other matter. The Seller shall not be liable for any defects in the Property, either latent or patent and the Property is accordingly sold "voetstoots" and subject to all the conditions and servitudes mentioned, referred to or contained in the title deed thereof and any lease thereof, and in a condition and the extent such as it now lays.
- 13.2 The Purchaser admits having inspected the Property to his satisfaction and that no express or implied representations, guarantees or warranties of any nature were made or given by the Seller or the Agent regarding the condition, quality or any other characteristics of the Property or any improvements thereon or accessories thereto.
- 13.3 The Purchaser agrees that the Seller does not make any warranties or representations, whether express or implied, regarding vacant occupation and possession of the Property.
- 13.4 The Seller warrants that all historical rates and taxes owed to the Council and/or Municipality in regard to the Property or to the buildings and improvements thereon, have been duly paid and are up to date and that the Municipality will accordingly have no claim against the Property by way of a statutory hypothec or otherwise for any arrear rates and taxes.

14. NOMINATIONS and CAPACITY OF PARTIES

- 14.1 Should:-
- 14.1.1 the Purchaser be a company, close corporation, trust or a principal represented herein by an Agent, the person or persons signing this offer on behalf of the Purchaser hereby bind himself/themselves in favour of the Seller and/or Agent as surety for, and co-principal debtor with, the Purchaser for the due and proper discharge of all the Purchaser's obligations arising from this Agreement and furthermore hereby undertake to sign all documents which may be required by any bank or financial institution (mortgagee) contemplated in this Agreement so as to ensure the fulfilment of any conditions to which this Agreement may be subject.

- 14.1.2 this Agreement be signed by a person acting in his capacity as a trustee for a company or close corporation to be formed, such person in his personal capacity shall be personally liable as Purchaser under this Agreement unless the company or close corporation is formed and fully adopts and ratifies the terms of this Agreement within 30 (thirty) days of acceptance hereof by the Seller and:-
- 14.1.2.1 shall until the proposed company or close corporation is formed and fully adopts and verifies this Agreement, be and have the rights and obligations of the Purchaser hereunder; and
 - 14.1.2.2 never the less binds himself by his signature hereto as surety and co-principle debtor in solidum, jointly and severally, with such company or close corporation in favour of the Seller and/or Agent, for the due fulfilment of all the Purchaser's obligations of such company or close corporation arising here from.
- 14.2 The Purchaser undertakes to supply all FICA requirements as set out in Schedule "2" and warrants that all information supplied therein is true and correct.

15. COMMISSION

- 15.1 The Seller shall pay to the Agent, the Agent's Commission of 7.5% plus VAT, which commission shall be deemed to be earned upon the signature of this Agreement by both the Purchaser and the Seller and the fulfilment or waiver of any condition precedent to which it may be subject. The commission shall be payable upon registration of transfer of the Property into the Purchaser's name. Should this Agreement be cancelled by mutual agreement, the Seller shall be liable for the Agent's Commission payable on demand. Should this Agreement be cancelled by reason of the Purchaser or Seller having breached this Agreement, then in such event, the defaulting party shall be liable for payment of the Agent's Commission payable on demand.
- 15.2 The Purchaser warrants that the only Agent that introduced the Purchaser to the Property is the Agent specified in item 1.13 and indemnifies the Seller against any claim by any other estate agent in respect of the sale of the Property.

16. CERTIFICATES

- 16.1 **Electrical Compliance Certificate and Electric Fence Certificate (if Applicable)**
The Seller shall, prior to the date of transfer of the Property into the Purchaser's name, and at the Seller's expense, furnish to the Purchaser a valid certificate of compliance in respect of any and all electrical installations including the electric fence (if applicable) on the Property as required by the regulations promulgated under the Occupational Health and Safety Act, 85 of 1993, as amended ("OHS Act"), or any Act passed in substitution thereof. Such certificate is to be issued by an accredited person as contemplated in the regulations published in terms of the OHS Act, certifying that the electrical installations on the Property are in accordance with the required standards and are reasonably safe. Should it transpire that there is any fault or defect in the electrical installations, the Seller shall be obliged, at its expense, within 14 (fourteen) days after receipt of such report, to contract with an electrical contractor or suitably qualified person to carry out the repairs as recommended so as to enable the accredited person to issue the certificate as aforesaid.
- 16.2 **Occupation Certificate**
If the immovable has been newly built, the Seller shall provide a certificate of occupation (occupancy certificate) of the Property issued by the relevant local authority in terms of the National Building Regulations and Building Standards Act, no 103 of 1977, as amended, or any Act passed in substitution thereof.
- 16.3 **Gas Certificate**
In the event of the Property including any article or substance which is regulated in terms of the OHS Act, No 85 of 1993, as amended, and in the event of there being any duty on the Seller to ensure that the article or substance complies with any aspect of the OHS Act or any Act passed in substitution thereof, it is hereby agreed that the Seller will undertake all such steps as are required to ensure that the items and/or substances will comply with all prescribed requirements and will be safe and without risk to health when properly used.
- 16.5 The Purchaser shall at its own cost, obtain any other such certificate as may be required by law, or by the Purchaser's bank or financial institution as the case may be, provided however that if it is revealed during the course of obtaining such certificate, that there is any defect in the Property in respect of which the Seller would ordinarily have to comply in terms of relevant legislation, the Seller shall, in such event, be obliged to restore the Property, and/or the buildings or services contained on or erected on the Property, at its cost, to good order in compliance with any applicable legislation.

17. RATES, TAXES AND CONSUMPTION CHARGES

- 17.1 The Seller shall be responsible for the payment of all arrear levies, municipal rates and taxes and any and all Consumption Charges due in respect of the Property until date of registration of transfer into the Purchaser's name.
- 17.2 The Purchaser will however be responsible for the payment of all Consumption Charges from date of occupation to date of transfer of the Property into the Purchaser's name, in the event that the date of occupation occurs before registration of transfer.

- 17.3 The Seller shall be obliged to produce proof to the reasonable satisfaction of the Purchaser that all arrear levies, municipal rates and taxes and any and all consumption charges that may be applicable in respect of the Property have been settled and are up to date. For the avoidance of doubt, a copy of the latest relevant statements shall suffice in this regard.

18. BREACH

- 18.1 Should the Purchaser breach any of the conditions of this Agreement, all of which are deemed to be material, and fail to remedy same within 7 (seven) days from the date of receipt of a written notice calling upon it to rectify the breach, the Seller shall then be entitled without further notice and without prejudice to any other rights which it may have:-
- 18.1.1 to cancel this Agreement and claim damages. Should the Seller elect to cancel the Agreement all amounts paid by the Purchaser shall forthwith be paid to the Seller, after deduction and payment to the Agent of the commission, as agreed liquidated damages, and the Purchaser agrees that such sum is a reasonable pre-estimate of the loss sustained by the Seller, alternatively, at the election of the Seller, as pledge security for such damages to be ascertained according to law; or
- 18.1.2 to sue for the full Purchase Price and interest thereon together with any additional damages suffered.
- 18.2 Should the Seller breach any of the conditions of this Agreement and fail to remedy same within 7 (seven) days from the date of receipt of a written notice calling upon it to rectify the breach, the Purchaser shall be entitled without prejudice to any of its rights, to:-
- 18.2.1 sue for specific performance of the Seller's obligations and claim any damages suffered; or
- 18.2.2 in the event that such breach constitutes a material term of this Agreement, to cancel this Agreement and claim damages from the Seller together with interest.

19. COOLING OFF

In the event that the Purchaser is a natural person who has not reserved the right to appoint a nominee as contemplated herein and the Property herein purchased is a residential Property to be sold at a price of R250 000.00 (two hundred and fifty thousand rand) or less, the Purchaser's attention is drawn to its rights in terms of Section 29A of the Alienation of Land Act 68 of 1981 (as amended) to revoke this offer or terminate any sale agreement concluded as a result of this offer, by written notice delivered to the Seller or the Agent's address, either by telefax or e-mail transmission or by hand, within a period of 5 (five) days calculated from and including the day after signature hereof by the Purchaser, but excluding Saturdays, Sundays and Public Holidays. Such notice shall only be effective if signed by the Purchaser or its Agent and if it identifies this offer or Agreement and furthermore that such notice is unconditional.

20. DOMICILIA (PLACE FOR SERVICE OF SUMMONS AND NOTICES)

- 20.1 The parties agree to accept service of any court process, or to accept delivery of any notice, either as contemplated by this Agreement, including any notifications in terms of the Alienation of Land Act or other applicable legislation, at their respective addresses as referred to in item 1.14 and 1.1 of Schedule "1".
- 20.2 Any notice will be deemed to have been duly delivered to the party concerned:-
- 20.2.1 within 7 (seven) days of postage by prepaid registered mail to the postal address of that party, as referred to in item 1.14;
- 20.2.2 on the same day of it being successfully faxed to the fax number of that party, as referred to in item 1.14
- 20.2.3 on the same day of it being successfully sent to the e-mail address of that party, as referred to in item 1.14; or
- 20.2.4 on the day of it being delivered by hand to the physical address of that party, as referred to in item 1.14 and 1.1 of Schedule "1".
- 20.3 Either party is entitled, by written notice to the other party, to change any of its addresses as referred to in item 1.14 and 1.1 of Schedule "1", provided that such new physical address as disclosed in such notice is within the Republic of South Africa.

21. CONSENT TO JURISDICTION

- 21.1 Either party shall, as its election, be entitled to institute action out of any Magistrates' Court exercising jurisdiction over the other party's person, notwithstanding that the amount of its claim or the nature of the relief sought would otherwise have exceeded the jurisdiction of that court.
- 21.2 If either party is a peregrinus, (i.e. foreigner) then such party consents to the jurisdiction of the High Court in which the Property is located.

22. MARITAL STATUS OF PURCHASER

The Purchaser warrants that his or her marital status is as set forth in item 1.1 of Schedule "1" and further that the information contained in such schedule is true and correct in every respect.

23. SPECIAL CONDITIONS

Should the parties agree to any Special Conditions they shall be set out in item 1.12 of Schedule "1" and unless specified to be suspensive or resolutive conditions, they shall be deemed not to be suspensive or resolutive. No other conditions, save as may be set out in this Agreement or any addenda hereto shall be binding on the parties unless reduced to writing and signed by the parties as contemplated in clause 27.

24. COSTS

- 24.1 In the event of either party taking any legal action against the other party because of a breach by the other party of its obligations to the first-mentioned party including, without limitation, its failure to pay any amount, the other party shall pay for all legal costs incurred by the first-mentioned party on the scale as between attorney and own client including, without limitation, collection fees, tracing agents fees and fees of counsel on brief.
- 24.2 In the event of any provision of this Agreement obliging either party to do something, or requiring either party to attend to something at its cost, or providing that a party will pay for something, then in the event that the obliged party fails to do such thing or to attend to that thing, or to pay that amount, the other party shall be entitled, but not obliged, on behalf of the other party to attend to the required action or payment provided that such party shall be entitled to be reimbursed by the obliged party for the costs thereof, on demand.

25. SALE BOARD

The parties hereby consent to the Agent affixing a "sold" board or notice to the Property from the date of acceptance of this offer until 2 (two) months after the date of registration of transfer into the Purchaser's name.

26. WHOLE AGREEMENT

This Agreement constitutes the whole agreement between the parties as to the subject matter hereof.

27. NON VARIATION

No amendment, alteration, variation, deletion, addition, renewal or extension of this Agreement, whether consensual or unilateral, or mutual termination, shall be of any force or effect unless reduced to writing and signed by the Seller and the Purchaser.

28. NON WAIVER

No latitude, indulgence or extension of time granted by either party to the other party shall in any way prejudice the rights of the first-mentioned party nor be construed as a waiver of the first-mentioned party's rights nor create an expectation for the other party that such latitude, indulgence or extension of time will be granted to it in the future.

29. SEVERABILITY

Each of these terms and conditions shall be considered to be a separate provision, distinct from the others. In the event of any of these terms and conditions being found to be illegal, invalid, prohibited or unenforceable, such terms and conditions shall be ineffective only to the extent of that illegality, invalidity, prohibition or unenforceability and the remaining terms and conditions shall remain of full force and effect.

30. APPLICABLE LAW

This Agreement shall be governed by, and interpreted in accordance with, the laws of the Republic of South Africa.

SIGNATORIES

SIGNED AND DATED BY THE PURCHASER AT THE UNDERMENTIONED PLACE AND ON THE UNDERMENTIONED DATE, IN THE PRESENCE OF THE UNDERMENTIONED WITNESSES, HE/SHE BEING DULY AUTHORISED THERETO.

Signed by the PURCHASER at		on this the		day of		20	
----------------------------	--	-------------	--	--------	--	----	--

Purchaser Signature (1)

Purchaser Signature (2)

Purchaser Name (1)

Purchaser Name (2)

WITNESS

SIGNED AND DATED BY THE SELLER AT THE UNDERMENTIONED PLACE AND ON THE UNDERMENTIONED DATE, IN THE PRESENCE OF THE UNDERMENTIONED WITNESSES, HE/SHE BEING DULY AUTHORISED THERETO.

Signed by the SELLER at		on this the		day of		20	
-------------------------	--	-------------	--	--------	--	----	--

Seller Signature (1)

Seller Signature (2)

Seller Name (1)

Seller Name (2)

WITNESS

SIGNED AND DATED BY THE AGENT AT THE UNDERMENTIONED PLACE AND ON THE UNDERMENTIONED DATE, IN THE PRESENCE OF THE UNDERMENTIONED WITNESSES, HE/SHE BEING DULY AUTHORISED THERETO.

Signed by the AGENT at		on this the		day of		20	
------------------------	--	-------------	--	--------	--	----	--

AGENT (WHO ACCEPTS THE BENEFITS OF THIS AGREEMENT ON THE TERMS CONTAINED HEREIN)

PRINCIPAL/DIRECTOR

NAME OF SIGNATORY

WITNESS

CONTACT FORM

Purchaser (1):

Telephone Number:	
Email Address:	

Purchaser (2):

Telephone Number:	
Email Address:	

Seller (1):

Telephone Number:	
Email Address:	

Seller (2):

Telephone Number:	
Email Address:	

Agent:

Telephone Number:	
Email Address:	